

THE CONSTITUTION (NINETEENTH AMENDMENT) ACT, 1966

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Constitution and Amendments

THE CONSTITUTION (NINETEENTH AMENDMENT) ACT, 1966

India

THE CONSTITUTION (NINETEENTH AMENDMENT) ACT, 1966

Act 19 of 1966

Published in Gazette of India on 16 August 1966

Commenced on 11 December 1966

[This is the version of this document from 16 August 1966.]

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Statement of Objects and Reasons appended to the Constitution Twenty-first Amendment) Bill, 1966 which was enacted as the Constitution (Nineteenth Amendment) Act, 1966

STATEMENT OF OBJECTS AND REASONS

One of the important recommendations made by the Election Commission in its Report on the Third General Elections in India in 1962, and accepted by the Government relates to the abolition of election tribunals and trial of election petitions by High Courts.

If the proposal for a legislation to amend the Representation of the People Act, 1951, containing, inter alia, provisions for the trial of election petitions by High Courts instead of the election tribunals, as at present, is accepted by Parliament, it would be necessary to make a minor amendment in clause (1) of article 324 of the Constitution for the purpose of deleting therefrom the words "including the appointment of election tribunals for the decision of doubts and disputes arising out of or in connection with elections to Parliament and to the Legislatures of States".

The Bill is intended to give effect to the aforesaid object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Seventeenth Year of the Republic of India as follows:-

1.

Short title.-

This Act may be called the Constitution (Nineteenth Amendment) Act, 1966.

2.

Amendment of article 324.-

In article 324 of the Constitution, in clause (1), the words, "including the appointment of election tribunals for the decision of doubts and disputes arising out of or in connection with elections to Parliament and to the Legislatures of States" shall be omitted.

[The Constitution (Nineteenth Amendment) Act, 1966, abolished Election Tribunals in India and enabled trial of election petitions by High Courts. It amended clause (1) of article 324 of the Constitution, which provides for vesting of the power of superintendence, direction and control of elections with the Election Commission. The 19th Amendment removed the provision relating to the power of "the appointment of election tribunals for the decision of doubts and disputes arising out of or in connection with elections to Parliament and to the Legislatures of States". Provisions for the trial of election petitions by High Courts instead of the election tribunals, was provided for by amending the Representation of the People Act, 1951.

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